



Homes Insulation Act 1978

1978 CHAPTER 48

An Act to provide for local authority grants towards the thermal insulation of dwellings. [31st July 1978]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Grants for
thermal
insulation.

1.—(1) In accordance with such schemes as may be prepared and published by the Secretary of State and laid by him before Parliament, local authorities shall make grants towards the cost of works undertaken to improve the thermal insulation of dwellings in their areas.

(2) Schemes under this Act shall from time to time specify—

(a) the insulation works for which grant is to be available and the descriptions of dwellings which are to qualify; and

(b) the persons from whom applications are to be entertained in respect of different dwellings and categories of dwellings.

(3) The first such scheme shall be for the improved insulation of roof spaces and water supply; and the grant available under this scheme shall be, for any dwelling, 66 per cent. of the cost of the works qualifying for grant or £50, whichever is the lesser amount.

The Secretary of State may by order alter that percentage or money sum, or both.

(4) Under other schemes, the grant shall be such percentage of the cost of the works so qualifying, or such money sum (which-ever is the lesser amount), as the Secretary of State may prescribe by order for each scheme.

(5) A scheme other than the first may provide—

(a) for grants to be made only to those applying on grounds of special need; or

(b) to be made, in the case of those so applying, on a higher scale prescribed by the order under subsection (4).

(6) For this purpose “special need” is to be determined by reference to such matters personal to the applicant as may be prescribed by the scheme, particularly age, disability, bad health and inability without undue hardship to finance the cost of the works.

(7) In the administration of this Act, local authorities shall comply with any directions given to them by the Secretary of State (after consulting their representative organisations), particularly in matters relating to—

(a) the way in which applications for grant are to be dealt with, and the priorities to be observed between applicants and different categories of applicants; and

(b) the means of authenticating applications, so that grant is only given in proper cases, and of ensuring that the works are carried out to any standard specified in the applicable scheme.

(8) The local authorities to make grants under this Act are—

(a) in Greater London—

(i) as regards dwellings in a general improvement area or housing action area declared by the Greater London Council under the Housing Acts, that Council, and

(ii) otherwise, London borough councils and the Common Council of the City of London;

(b) elsewhere in England and Wales, district councils and the Council of the Isles of Scilly; and

(c) in Scotland, islands and district councils.

(9) “By order” means by order made by statutory instrument with Treasury approval; and—

(a) an order under section 1(3) or (4) may be varied or revoked by a subsequent order under the subsection; and

(b) orders under either subsection shall be subject to annulment in pursuance of a resolution of the House of Commons.

Finance.

2.—(1) Finance for the making of grants under this Act shall be provided to local authorities from time to time by the Secretary of State; and a local authority is not required, nor has power by virtue of this Act, to make grants in any year beyond those for which the Secretary of State has notified them that finance is committed for that year in respect of the authority's area.

(2) The Secretary of State shall, with Treasury approval, pay such sums as he thinks reasonable in respect of administration expenses incurred by local authorities in operating this Act.

(3) Any sums required by the Secretary of State for financing grants under this Act, or for making contributions under subsection (2) above, shall be paid out of money provided by Parliament.

Northern
Ireland.
1974 c. 28.

3.—(1) An Order in Council under paragraph 1(1)(b) of Schedule 1 to the Northern Ireland Act 1974 (legislation for Northern Ireland in the interim period) which states that it is made only for purposes corresponding to those of sections 1 and 2 of this Act—

(a) shall not be subject to paragraph 1(4) and (5) of that Schedule (affirmative resolution of both Houses of Parliament); but

(b) shall be subject to annulment by resolution of either House.

Citation and
extent.

4.—(1) This Act may be cited as the Homes Insulation Act 1978.

(2) Subject to section 3, this Act does not extend to Northern Ireland.